

25SMCV03483 25SMCV03483

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This is a demurrer. Plaintiff

sues defendant under the Fair Employment and Housing Act, contending that he was denied a teaching job for a discriminatory reason. Defendants contend that the action fails because he is not qualified for the teaching position because he is not credentialed. In prior rounds, plaintiff contended that the fact that he is not listed on the California website as having a credential is not dispositive.

To make a long story short, the court has ordered that plaintiff in this iteration either: (1) attach his credential or (2) explain why it is that he has a credential but cannot attach it; or (3) explain why it is that a credential is not in fact needed.

Defendant again demurs, alleging that plaintiff has not and cannot allege that he was qualified for the position consistent with facts of which the court may take judicial notice.

The court notes that one of the oppositions seems to be to another case in that it goes to unpled claims.

The court disregards that opposition and believes that the other opposition is the one plaintiff meant to file.

(For example, plaintiff's opposition goes to breach of contract—a cause of action unpled.)

The court notes that the second amended complaint (and the first amended complaint, for that matter) are not in proper form. The SAC is a combination abbreviated complaint and brief. The FAC is also an abbreviated complaint. The court has done the best it can to attempt to understand the causes of action now being asserted.

The first cause of action is for age discrimination. One of the requirements for a prima facie case is that plaintiff is qualified for the job. (Abed v. Western Dental Services, Inc. (2018) 23 Cal.App.5th 726.) Here, the job is to be a teacher in a public school. In California, the "governing board of a school district shall employ for positions requiring certification qualifications, only persons who possess the qualifications for those positions prescribed by law." (Ed. Code sec. 44830.) Defendants' request for judicial notice, which is granted, demonstrates that plaintiff is not listed as credentialed on the official state website. Plaintiff argues that he has many qualifications to teach the course he seeks to teach. And that may be, as a practical matter. But he needs a teaching credential and he does not have one. Even if he has great subject matter expertise, he still lacks a necessary credential and thus is not qualified for the position (within the meaning of the law). Plaintiff suggests that this could be taken care of in the onboarding modules. The court is aware of no law that suggests that onboarding can satisfy the credentialing requirement. In short, plaintiff cannot show that he has a credential or that the law does not require it. The court has given him ample opportunity to so demonstrate, but he has not. He suggests that he has a credential from Virginia. The court does not believe that would be sufficient, but he presents no evidence of that either, and apparently he is not listed as credentialed in Virginia. The demurrer to the first cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. The court notes that plaintiff has attached various accolades and achievements to his brief. The court has reviewed them, but none is a teaching credential.

The second cause of action fails for the same reason. It also fails because there is no allegation that he exhausted his administrative remedies (which is also true of the first cause of action). Accordingly, the demurrer to that cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

The demurrer to the third cause of action is for violation of Education Code section 44932. It also fails because it deals with the dismissal of a permanent employee, and he is not in that category. The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

The fourth cause of action is for defamation. Plaintiff initially pled that he was defamed because defendant stated that he was "not selected." He now states that defendants said he was "not qualified." But both statements are true. He was in fact not selected, and he is in fact not qualified because he does not meet the qualifications for the job. Truth is a defense to defamation. The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

The fifth cause of action is for conspiracy. It is not a cause of action. The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. (It is not really clear whether plaintiff is suing for conspiracy in the SAC.)

Finally, the sixth cause of action goes to the Unruh Act. But a school is not a business establishment within that Act. The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

In short, the entire complaint is SUSTAINED WITHOUT LEAVE TO AMEND. Defendants will present an Order of Dismissal, and the court will set a non-appearance date to be sure that the order is signed. The order is appealable (once signed), and if plaintiff believes that this court was in error, his remedy lies with the Court of Appeal.